

25SMCV04254 25SMCV04254

County: los-angeles

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Case Number: 25SMCV04254 Hearing Date: July 15, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

MYRON LLOYD MASSEY,

Plaintiff,

v.

LUCID GROUP,
INC.

Defendant.

Case

No.: 25SMCV04254

Hearing Date: July 15, 2026

[TENTATIVE]

order RE:

PLAINTIFF'S MOTION FOR

ATTORNEYS' FEES

BACKGROUND

This is lemon law case. Plaintiff Myron Lloyd Massey bought a new 2022 Lucid Air Dream, which was manufactured by Defendant Lucid Group, Inc. Plaintiff claims that the car suffered from numerous defects which Defendant and its representatives were unable to repair after a reasonable number of attempts.

On August 15, 2025, Plaintiff filed a lawsuit for breach of express, and implied warranties and for violation of the Tanner Consumer Protection Act. On October 3, 2025, Defendant filed a motion to compel arbitration. On November 4, 2025, Plaintiff filed an opposition to the motion to compel arbitration. On November 14, 2025, the parties filed a joint stipulation to continue the hearing on the petition to compel arbitration, stating that they had reached a settlement agreement in principle. On March 4, 2026, the Court dismissed the case pursuant to CCP section 664.6. The case settled for \$195,751.86, plus attorney's fees, and expenses. (Parzivand Decl., Exh. A.)

Less than four months elapsed between the filing of the complaint and the settlement. Other than the petition to compel arbitration, there were no other motions filed in the case. There were also no hearings. Plaintiff only filed a complaint, a proof of service, an opposition to the motion to compel arbitration, and a motion for attorneys' fees and costs. There were no hearings or CMC's. The CMC was set for March 4, 2026 and taken off calendar, well after the settlement had been reached. There also appears to have been no discovery served on or propounded by Plaintiff.

This hearing is on Plaintiff's motion for attorneys' fees. As clarified in the Reply, Plaintiff seeks \$20,778.37 which consists of (1) \$13,695 in attorney's fees, (2) \$2,500 for Plaintiff's counsel to review Defendant's opposition, draft the Reply, and attend the hearing on this motion, (3) a .3 multiplier enhancement of \$4,202.25, and (4) \$589.62 in costs.

LEGAL STANDARD

Parties to litigation must generally bear their own attorney's fees, unless they otherwise agree or a statute provides otherwise. (Code Civ. Proc. § 1021.) Here, the Song-Beverly Act ("SBA") provides for the award of attorneys' fees to prevailing plaintiffs as follows:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code § 1794, subd. (d).)

California courts have consistently "rejected the motion that the fee award must be proportionate to the amount of damages recovered." (Niederer v. Ferreira (1987) 189 Cal.App.3d 1485, 1508 (1987).) An attorneys' fee award is to be based upon actual time expended rather than being tied to any percentage of the recovery. (Drouin v. Fleetwood Enterprises (1985) 163 Cal.App.3d 486, 493.) Because Plaintiff is suing under the SBA, the legislative policies are in favor of recovery of all attorney fees reasonably expended without limiting the fees to a proportion of the actual recovery. (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 164.)

The fee setting inquiry in California ordinarily begins with the "lodestar" method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, n.23.)

The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.) The factors

considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (*EnPalm, LLC v. Teitler Family Trust* (2008) 162 Cal. App. 4th 770, 774 (emphasis in original).)

A negative modifier is appropriate when duplicative work has been performed. (*Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819.) On the other hand, a positive multiplier may be applied to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.)

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion.” (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623.)

DISCUSSION

The Court first addresses Defendant's argument that Plaintiff's motion is untimely. California Rules of Court, Rule 3.1702 provides that a fee motion “must be served and filed within the time for filing a notice of appeal under Rule 8.104 and 8.108 in an unlimited civil case . . .”, which deadline ordinarily “falls 60 days after notice of entry of judgment or 180 days after entry of judgment, whichever is first.”

Here, there is no notice of entry of judgment, and thus, the deadline is 180 days after entry of judgment. The case was dismissed in March 2026. Thus, the motion is timely.

The Court turns now to the merits of the motion. There is no dispute that Plaintiff is the prevailing party, and under the SBA, he is entitled to “attorneys' fees based on actual time expended, determined by the court to have been reasonably incurred.” (Civ. Code § 1794.)

In calculating the

attorneys' fees, the Court starts with the lodestar which is the reasonable hourly rate multiplied by the reasonable hours expended. (Donovan v. Poway Unified Sch. Dist. (2008) 167 Cal.App.4th 567, 628.) This case was litigated by three attorneys.

Joseph

Parzivand received his Juris Doctorate from Loyola Law School in 2024. (Parzivand Decl., ¶ 18.) He has litigated hundreds of consumer warranty cases. He seeks an hourly rate of \$500. There is no indication in his declaration that his hourly rate has been approved by any courts.

Zachary Francey received his Juris

Doctorate from California Western School of Law and was admitted to the State Bar in 2024. (Id., ¶ 25.) He has litigated hundreds of consumer warranty cases. (Id., ¶ 27.)

He seeks an hourly rate of \$425. There is no indication in Parzivand's declaration that Francey's hourly rate has been approved by any courts.

Sina Rezvanpour received his

Juris Doctorate from University

of Southern California, Gould School of Law. (Id., ¶ 30.) He is the founder and principal attorney at Sina Rez Law, APC, with a primary focus on consumer warranty cases. He has over 13 years of experience with lemon law claims. (Id., ¶ 31.) He seeks an hourly rate of \$625. Other courts have approved his previous hourly rates of \$600 and \$575. (Exs. C-G to Parzivand Decl.)

The Court concludes that

Parzivand and Francey's rates are not reasonable for attorneys with two or less years of experience. Further, they have not presented evidence indicating other courts have approved their hourly rates. The Court reduces their hourly rates to \$400.

The

rate charged by Rezvanpour is reasonable for attorneys of similar experience, in the same area, dealing with the same subject matter. (See Goglin, supra, 4 Cal.App.5th at 473–74 (approving \$625 per hour fee on lemon law action).) This conclusion is corroborated by counsel's evidence of other cases in which similar fee awards have

been approved for his firm. (Parzivand Decl., Exs. C to G.) It is also confirmed by The Laffey Matrix which shows that for the Los Angeles and San Francisco markets and in June 2023 to the present, an attorney with 13 years' experience charges approximately \$1,019 per hour. (Parzivand Decl., ¶ 34.)

Turning to the number of hours worked, the Court has the power to make "across-the-board percentage cuts either in the numbers of hours claimed or in the final lodestar figure." (Gonzalez v. City of Maywood, 729 F.3d 1196, 1203 (9th Cir. 2013) (emphasis added). "A reduced [attorneys' fees] award might be fully justified by a general observation that an attorney over litigated a case . . . or that the opposing party has stated valid objections." (Gorman v. Tassajara Dev. Corp. (2009) 178 Cal.App.4th 44, 101 (emphasis added); see also Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 38.)

Counsel claims they spent 26.8 hours in prosecuting this case, plus \$2,500 in connection with this motion. Defendant argues that the hours are excessive and should be cut. The Court agrees given that the case involved no depositions, no expert discovery, no trial preparation and no court appearances. The Court concludes that 22 hours is sufficient for Plaintiff's counsel to have drafted the complaint, filed an opposition to a motion to compel arbitration, negotiated a settlement, and prepared the fees motion, all of which would have taken little time for a firm with a niche practice in Lemon law cases and with the benefit of prior papers in other cases that were templates for the filings in this case. Given the Court's determination that 22 hours is sufficient, the Court does not go on to consider the specific entries that Defendant challenges as excessive or duplicative.

Plaintiff requests that the Court apply a 0.3 multiplier to counsel's fees due to the outcome, specialized knowledge required, and the contingent nature of the case. The Court is permitted, but not required, to apply a multiplier to an award for attorney's fees if, inter alia, there was contingent risk or exceptional skill displayed by the attorneys. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138.) There is no evidence that this case involved anything novel, nor did it require particular skill. This is a garden-variety lemon law action. There is no basis for a multiplier.

Additionally, under the Song-Beverly Act, a prevailing buyer is entitled to recover his costs and expenses. (See, Civ. Code § 1794(d) [emphasis added].)

The California Legislature intended the word “expenses” to cover outlays not included in the detailed statutory definition of “costs,” and the Song-Beverly Act’s legislative history demonstrates the Legislature exercised its power to permit recovery of a host of litigation expenditures beyond those permitted by Code of Civil Procedure § 1033.5. (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138.)

Plaintiff seeks \$589.62 in costs. Counsel’s declaration attaches invoices in support of the request for costs. (Parzivand Decl., Ex. B.) The costs for filing fees and service fees appear reasonable. Accordingly, the Court will award the entire amount of costs and expenses sought by Plaintiff, totaling \$589.62.

CONCLUSION
AND ORDER

For the foregoing reasons, the Court GRANTS
IN PART and DENIES IN PART Plaintiff’s motion for attorneys’ fees, costs
and expenses. The Court awards fees in
the amount of \$9,385, and costs in the amount of \$589.62, for a total award of \$9,974.62.

DATED: July 15, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court